

sought entry of default. Hearing on the Order to Show Cause was on May 18, 2026. Plaintiff did not respond or appear. On May 22, 2026, the Court issued the current Order to Show Cause and the Order of Sanctions. All of these Orders have been mailed the same address and none have been returned as undeliverable. The Court will not disturb the previous Order of Sanctions but will **DISCHARGE** the current Order to Show Cause.

The Court notes that Proof of Service of Summons was filed on July 17, 2025. While counsel declared that they promptly began preparing for default judgment in September 2025, default has not been entered. There is no justification for the delay. The matter is continued to **Tuesday, September 8, 2026 at 9:00 a.m. in Department 63** for status of default and default judgment. If a default judgment is not on file prior to September 8, 2026, the Court intends to issue an Order to Show Cause Re: Sanctions to Plaintiff and counsel in the amount of \$500 for failure to timely obtain default and default judgment. **No appearance is necessary on today's calendar.**

IN RE: FITZGERALD

CASE NUMBER: 26CV-0210192

Tentative Ruling on Petition for Change of Name: Petitioner Teri Linn Fitzgerald seeks to change her name to Noeme Zoe Tallescadi. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

JONES, ET AL. VS. DIETRICK

CASE NUMBER: 23CV-0203841

Tentative Ruling on Motion for Summary Judgment: Defendant/Cross-Defendant Jamie Ray Robertson (Robertson) moves for summary judgment on the Complaint filed by Plaintiffs Tiffany Jones, Christopher Beisel, and Raeven Jones Beisel (Plaintiffs) on December 8, 2023. Plaintiffs oppose the motion.

Request for Judicial Notice. Robertson requests the Court take judicial notice of the Complaint, Cross-Complaint, and Doe Amendment filed in this matter. These requests are granted pursuant to Evid. Code §§ 452(d) and 453. Robertson also requests the Court take judicial notice of the California Highway Patrol Traffic Collision Report. This request is denied, however, as noted below, the report is admitted into evidence for the purposes listed in Evidentiary Objection 1.

Evidentiary Objections. Plaintiffs make eleven objections to the evidence submitted by Robertson. The Court rules as follows:

1. Overruled. The Court is not accepting the CHP report for the truth of the matter, but for the fact that Plaintiffs were aware of the facts asserted therein and that Robertson's name and contact information were included.
2. Overruled.
3. Overruled.
4. Overruled.
5. Overruled.
6. Overruled.
7. Overruled.
8. Overruled.
9. Overruled.
10. Overruled. It is not clear what Plaintiffs are objecting to. While page 135 of the deposition transcript is not attached, the facts asserted are present in the deposition testimony provided.
11. Overruled. See Objection 1.

Merits. Summary judgment may be granted where it is shown that the action has no merit or that there is no defense to the action. CCP § 437c(a). The Court must determine from the evidence presented that there is no

triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. CCP § 437c(c). In moving for summary judgment, a defendant has met his burden of showing that a cause of action has no merit if he has shown that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. CCP § 437c(o). Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The plaintiff may not rely upon the mere allegations or denials of his pleadings to show that a triable issue of material fact exists but, instead, must set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto. CCP § 437c(p)(2). The scope of the defendant's initial burden is defined by the pleadings. See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.

The Complaint was filed on December 8, 2023 and named Shawn Deitrick (Dietrick) and Does 1-50. Proof of Service of Summons was never filed so it is unclear when Plaintiffs served Dietrick. However, Dietrick did not file his Answer until April 16, 2025. On the same date, Dietrick filed a Cross-Complaint for Indemnity that named Robertson and Roes 1-50. Robertson answered the Cross-Complaint on August 22, 2025. Plaintiffs filed a Doe Amendment naming Robertson as Doe 1 on March 12, 2026. At the time, the matter was set for trial on May 18, 2026, however, the trial date was vacated on April 6, 2026 at the Mandatory Settlement Conference. Robertson filed the instant Motion for Summary Judgment on April 9, 2026. Trial is currently scheduled for October 6, 2026. Robertson moves for summary judgment arguing that he was not properly named as a Doe Defendant and that he was named well after the statute of limitations had passed. Per the Complaint, the collision in this matter occurred on December 28, 2021. The Complaint, while it names Does, makes no mention of a blue truck, or any other vehicle, driving in the opposing lane of traffic. Instead, Dietrick and the Does are listed as violating Veh. Code §§ 21703 (following too closely) and 22350 (unsafe speed). The Doe Amendment filed on March 12, 2026 does not list the date or how Plaintiffs discovered the name of Doe 1.

CCP § 474 allows for a party to be named as a Doe Defendant. “When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly.” CCP § 474.

Section 474 allows a plaintiff who is ignorant of a defendant's identity to designate the defendant in a complaint by a fictitious name (typically, as a “Doe”), and to amend the pleading to state the defendant's true name when the plaintiff subsequently discovers it. When a defendant is properly named under section 474, the amendment relates back to the filing date of the original complaint. (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176 [89 Cal. Rptr. 2d 20].) Section 474 provides a method for adding defendants after the statute of limitations has expired, but this procedure is available only when the plaintiff is actually ignorant of the facts establishing a cause of action against the party to be substituted for a Doe defendant. (*Optical Surplus, Inc. v. Superior Court* (1991) 228 Cal.App.3d 776, 783 [279 Cal. Rptr. 194] (*Optical Surplus*).) “The question is whether [the plaintiff] knew or reasonably should have known that he had a cause of action against [the defendant].” (*Wallis v. Southern Pac. Transportation Co.* (1976) 61 Cal.App.3d 782, 786 [132 Cal. Rptr. 631] (*Wallis*).)

“Ignorance of the *facts* giving rise to a cause of action is the ‘ignorance’ required by section 474, and the pivotal question is, “‘did plaintiff know *facts*?’” not “‘did plaintiff know or believe that [he] had a cause of action based on those facts?’”” (*General Motors Corp. v. Superior Court* (1996) 48 Cal.App.4th 580, 594 [55 Cal. Rptr. 2d 871] (*General Motors*), quoting *Scherer v. Mark* (1976) 64 Cal.App.3d 834, 841 [135 Cal. Rptr. 90]; see *Hazel v. Hewlett* (1988) 201 Cal.App.3d 1458, 1464–1465 [247 Cal. Rptr. 723] (*Hazel*).) “Although it is true that a plaintiff's ignorance of the defendant's name must be genuine (in good faith) and not feigned [citations] and that a plaintiff

need not be aware of each and every detail concerning a person's involvement before the plaintiff loses his ignorance [citations], it is equally true that the plaintiff does not relinquish [his] rights under section 474 simply because [he] has a suspicion of wrongdoing arising from one or more facts [he] does know.” (*General Motors*, at pp. 594–595.)

McClatchy v. Coblenz, Patch, Duffly & Bass, LLP (2016) 247 Cal. App. 4th 368, 371-372.

The California Highway Patrol generated from this incident lists Robertson’s full name, address, and phone number. Plaintiffs argue that the report did not make it clear that Robertson was in the blue truck in the opposing lane of traffic just prior to the collision. This is contradicted by the report itself. Under statements, Officer Gordon wrote:

Witness Robertson related he was driving his vehicle (blue Dodge Ram 1500) on SR-44 W/B. at approximately 40 MPH. He wanted to pass a slower moving vehicle directly in front of him. He moved his Dodge Ram into the eastbound lane of SR-44 and quickly passed the vehicle. Once he passed the vehicle in front of him, he immediately moved back into the westbound lane of SR-44. He then saw a white snow cloud on the south shoulder approximately 300 feet ahead of his location. As he passed V-2 on the south shoulder, he noticed that there was a traffic collision. He then made a U-turn and went to check on the welfare of the occupants of the involved vehicles.

In the Summary portion of the report, Officer Gordon wrote that Plaintiff Jones “observed a blue pickup (Dodge Ram 1500) passing a vehicle in the opposite direction ahead of her.” Plaintiffs took pictures of Robertson’s truck at the scene, including a close-up of his license plate. Plaintiff Jones was deposed on October 22, 2025. She testified about a blue truck in the opposite lane of traffic and that she took a picture of a blue truck. When discussing one picture, it was referred to as “Robertson’s vehicle” and Plaintiff Jones agreed.

Based on the evidence provided by Defendants, it is clear that prior to filing the Complaint, Plaintiffs were aware that Robertson was driving the blue truck in the opposite lane of traffic. Plaintiffs were aware of both Robertson’s identity and the facts surrounding the collision. Robertson was named as a Cross-Defendant on April 16, 2025, nearly eleven months prior to being named as Doe 1.

In *A.N. v. County of Los Angeles* (2009) 171 Cal. App. 4th 1058, a trial court’s ruling that a delay from knowing identities in late 2006 to early 2007 presented an unreasonable delay when the Doe Amendment was filed in August 2007. The delay here was from December 28, 2023 to March 12, 2026. When the Doe Amendment was filed, trial was scheduled for May 18, 2026. The Court recognizes that Robertson was not new to the case, however, he had only been named a cross-defendant for indemnity. This means that Robertson could only be liable to the extent that Dietrick was liable. With the amendment to Robertson as a direct Defendant, Plaintiffs could conceivably now argue that Robertson was the cause of the collision. This would be in conflict with the Doe Amendment itself as there is no mention of a vehicle in the opposing lane of traffic in the Complaint. Regardless of the merits, Robertson has presented evidence of prejudice. He was named as a direct defendant very late into the case, long after the statute of limitations for the underlying collision had occurred. Robertson has been put at a disadvantage in settlement negotiations and trial preparation. Robertson has established the Doe Amendment does not comport to CCP § 474 as the ignorance is feigned. The delay was unreasonable and Robertson would suffer prejudice if forced to move forward as Doe 1. Robertson has met his burden under CCP § 437c.

The burden then shifts to Plaintiffs to raise a triable issue of material fact. Plaintiffs claim that at the time of filing that they were unaware of Robertson’s identity, however, this is not provided in either of their declarations. Instead, Plaintiffs only address the claim their insurance company made with Robertson’s insurance company. The Court does not find the insurance evidence to be compelling as, other than the letters which Plaintiffs claim they did not receive, actual knowledge is not imputed to Plaintiffs. However, if Plaintiffs truly did not know that

Robertson was the driver of the blue pickup in the opposite lane of traffic just prior to the collision, Plaintiffs could and should have presented that evidence. Plaintiffs could have stated exactly how and when they discovered this fact. Their silence on the topic speaks volumes. The only other evidence provided by Plaintiffs is the declaration of counsel who provided her opinion that the Traffic Collision Report did not make it clear that Robertson was actual driver in the opposing lane of traffic and states that it was not until Robertson's deposition on December 8, 2025 that this fact was clear. The opinion regarding the report being unclear is unreasonable. There has been no explanation provided for the delay from December 8, 2025 to March 12, 2026. Although three months is not an extremely long period of time, at the December 8, 2025 deposition, trial was just over five months away. The deposition transcript from Robertson's deposition was not provided. Nothing argued by Defendants or presented as evidence raises a triable issue of material fact as to whether Plaintiffs knew of Robertson's identity and the underlying facts at the Complaint was filed. There is also no triable issue of material fact as to whether the delay was unreasonable or whether Robertson would suffer actual prejudice.

The motion is **GRANTED**. Robertson is dismissed as Doe 1 and will remain in the matter as a Cross-Defendant only. Robertson provided proposed Order that will be modified to reflect the Court's ruling.

KATSKE VS. SHASTA COUNTY BOARD OF SUPERVISORS, ET AL.

CASE NUMBER: 26CV-0209919

Tentative Ruling on Motion for Attorney Fees: Intervenor Laura Hobbs, Deidre Holliday, Kari Chilson, Jim Burnett and Richard Gallardo ("Intervenor") move for an order awarding attorney fees pursuant to Code of Civil Procedure section 1021.5. Intervenor request an award of \$123,445 jointly and severally against Petitioner Jennifer Katske ("Petitioner") and Respondents Shasta County Board of Supervisors and Clint Curtis, in his official capacity as Shasta County Registrar of Voters ("Respondents"). Respondents have filed an Opposition to the Motion. Petitioner has filed a Request for Continuance of Hearing on the Motion. Intervenor oppose a continuance.

Request for Judicial Notice: Intervenor request the Court take judicial notice of the Shasta County Board of Supervisors Summary of Proceedings for the public meeting held on June 16, 2026 attached as Exhibit A. The request is denied because it was presented for the first time along with the Reply papers, leaving Petitioner and the County Board no opportunity to review and oppose the request.

Background: Petitioner initiated these proceedings on February 17, 2026 with the filing of a "Verified Petition for Writ of Mandate and Complaint for Declaratory and Injunctive Relief." Petitioner sought declaratory and injunctive relief to bar Respondents from placing the "Shasta County Voter ID, Hand-Counted Ballots, and Absentee Voting Limits Initiative" on the June 2, 2026 Shasta County ballot. Petitioner contended that certain provisions of the Initiative violated California law. On March 5, 2026, the Court granted leave for the Intervenor to enter the case.

The Intervenor filed a demurrer to the Petition, which the Court sustained without leave to amend on March 26, 2026, on the grounds that the Petition failed to state facts sufficient to constitute a cause of action pursuant to CCP 430.10(e). The Court also explained that pre-election review of the Initiative's legality was inappropriate, and that a post-election challenge would be the appropriate place to address Petitioner's arguments.

Standard: Code of Civil Procedure section 1021 provides that except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties. Here, Intervenor seek attorney fees pursuant to CCP § 1021.5, which provides:

Upon motion, a court may award attorneys' fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred